

The Contested Case Hearing

The contested case hearing is the last stop in the complaint process. If the case doesn't go to an informal conference, or resolution isn't achieved through an informal conference, then a contested case hearing must be held.

Witnesses can be called for the contested case hearing by the department or by the state attorney general. The department or attorney general's office may petition the circuit court to subpoena witnesses.

The contested case hearing concludes with a hearing report sent to the department, the board, and the office of the attorney general. This hearing report contains a determination of findings of fact, and may contain recommendations for penalties in accordance with Article 6. Both the complainant and the respondent (the licensee) receive a copy of the hearing report.

The board has 60 days after receiving the hearing report to make a final decision on whether penalties will be assessed and if so, which penalties. If the board is unable to come to a final decision within 60 days, the director may choose to make the decision.